

Regulated Crypto Exchange / Distribution Agreement

for on-ramp and off-ramp services (Fiat to Crypto and Crypto to Fiat)
in relation to the issuance of Certificates linked to the Finest Index

DRAFT — 18 May 2026

NOT FOR EXECUTION

THIS REGULATED CRYPTO EXCHANGE / DISTRIBUTION AGREEMENT (the “Agreement”) is made and entered into as of

[REDACTED]

BETWEEN

1. FI finest Investments GmbH, a company duly incorporated under the laws of Germany, with its registered office at Luegallee 12, 40545 Duesseldorf, Germany, Commercial Register: HRB 104198, Amtsgericht Duesseldorf, USt-ID: DE368580709 (“**Finest**”)

AND

2. [REDACTED], a company duly incorporated and licensed under the laws of [REDACTED], holding a licence to operate as a crypto-asset exchange and/or crypto-asset trading platform issued by [REDACTED], with its registered office at [REDACTED] (the “**Exchange**”)

(each a “Party” and together the “Parties”)

RECITALS

(A) Finest acts as asset manager and initiator in respect of Compartment 920 within Opus – Chartered Issuances S.A. (the “Issuer”), established for the purpose of issuing certificates linked to the Finest Next-Gen Defence Innovators Index as crypto securities (Kryptowertpapiere) under the German Electronic Securities Act (eWpG).

(B) The Certificates are issued as digital tokens on the Cardano blockchain (CIP-113 standard) and require reliable on-ramp and off-ramp services to facilitate investor access, including conversions between fiat currencies and crypto-assets.

(C) The Exchange is a regulated crypto-asset trading platform operating a reliable environment for the buying and selling of digital assets in a compliant and transparent manner, and is authorised to provide on-ramp and off-ramp services.

(D) The Parties wish to formalise the terms under which the Exchange shall provide on-ramp, off-ramp, and distribution services in connection with the Certificates.

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

Definitions

1.1. In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below:

“Applicable Regulations” means all applicable laws, regulations, directives, and guidelines, including: the Markets in Crypto-Assets Regulation (Regulation (EU) 2023/1114, “MiCAR”); the German Banking Act (Kreditwesengesetz, “KWG”); the German Securities Trading Act (Wertpapierhandelsgesetz, “WpHG”); the German Electronic Securities Act (Gesetz über elektronische Wertpapiere, “eWpG”); EU Directive (EU) 2015/849 on anti-money laundering, as amended; the EU Travel Rule (Regulation (EU) 2023/1113); the Swiss Federal Act on Financial Services (FinSA); and all applicable sanctions legislation.

“Business Day” means a day (other than a Saturday, Sunday, or public holiday) on which commercial banks are open for general business in Frankfurt am Main, Germany and in the jurisdiction of the Exchange’s registered office.

“Certificates” means the electronic bearer debt securities issued by the Issuer in respect of Compartment 920, linked to the performance of the Finest Index, recorded in a crypto securities register as CIP-113 tokens on the Cardano blockchain.

“Compartment Assets” means all assets allocated to Compartment 920, including investments, cash balances, receivables, hedging positions, and any other property or rights attributed thereto.

“Confidential Information” means all information disclosed by one Party to the other in connection with this Agreement, whether in writing, orally, or electronically, that is designated as confidential or should reasonably be considered confidential, including commercial terms, investor data, technical specifications, and trading data.

“Eligible Investor” means any natural or legal person who satisfies the target market criteria defined in the Offering Documents and who has completed the AML/KYC onboarding process and any applicable suitability assessment.

“Force Majeure Event” means any event beyond a Party’s reasonable control, including natural disasters, pandemics, war, terrorism, sanctions, governmental actions, regulatory changes, systemic blockchain disruptions, and systemic cyberattacks.

“Offering Documents” means the KID, the WIB, the Factsheet, and any other document provided to Eligible Investors in connection with the subscription of Certificates.

“On-Ramp” means the conversion of fiat currencies (including EUR, USD, and such other currencies as may be agreed) into crypto-assets (including ADA) for the purpose of enabling investors to subscribe to the Certificates.

“Off-Ramp” means the conversion of crypto-assets into fiat currencies for the purpose of settling redemptions, distributions, or other payments to investors.

“Personal Data” has the meaning given in Regulation (EU) 2016/679 (the “GDPR”).

“Trading Platform” means the Exchange’s electronic platform, including all hardware, software, systems, and infrastructure operated by or on behalf of the Exchange for the facilitation of On-Ramp, Off-Ramp, distribution, and secondary trading services.

“**Wallet**” means a Cardano-compatible blockchain wallet address used for the holding and transfer of CIP-113 tokens representing the Certificates.

Interpretation

1.2. In this Agreement: references to clauses and schedules are to clauses of, and schedules to, this Agreement; headings are for convenience only and shall not affect interpretation; words in the singular include the plural and vice versa; a reference to a statute includes any subordinate legislation and any amendment or replacement from time to time; and a reference to “writing” includes email but not fax.

2. APPOINTMENT AND SCOPE OF SERVICES

Appointment

2.1. Finest hereby appoints the Exchange, and the Exchange hereby accepts such appointment, as a non-exclusive provider of On-Ramp, Off-Ramp, distribution, and ancillary services in connection with the Certificates on the terms of this Agreement. Nothing herein shall prevent Finest from appointing additional exchanges or service providers for the same or similar services.

Scope of Services

2.2. The Exchange shall provide the following services (collectively, the “Services”):

- **On-Ramp services:** facilitating the conversion of fiat currencies (EUR, USD, and such other currencies as may be agreed) into crypto-assets, in particular ADA, enabling Eligible Investors to subscribe to the Certificates. The Exchange shall ensure that conversion rates are fair, transparent, and disclosed to the investor prior to execution;
- **Off-Ramp services:** facilitating the conversion of crypto-assets back into fiat currencies, enabling the settlement of redemptions and distributions to investors in accordance with the Product Conditions;
- **Distribution support:** making the Certificates available for subscription by Eligible Investors through the Trading Platform, subject to all applicable investor eligibility, AML/KYC, suitability, and appropriateness requirements;
- **Secondary market facilitation:** where feasible and in compliance with Applicable Regulations, providing a venue for secondary trading of the Certificates between Eligible Investors;
- **Investor onboarding:** conducting AML/KYC identity verification, sanctions screening, and where applicable suitability assessments on all investors and counterparties accessing the Certificates through the Trading Platform;
- **Wallet whitelisting:** cooperating with Finest and the Registrar to maintain a whitelist of approved Wallets, ensuring that Certificates are only transferred to verified and compliant holders;
- **Reporting:** providing Finest with regular reports on trading volumes, On-Ramp and Off-Ramp transactions, investor onboarding status, and any compliance incidents.

Service Standards

2.3. The Exchange shall perform the Services with reasonable skill and care, in a professional, compliant, transparent, and non-discriminatory manner, and in accordance with all Applicable Regulations. The Exchange shall allocate sufficient qualified personnel and resources to ensure the timely and competent provision of the Services.

3. INVESTOR ONBOARDING AND ELIGIBILITY

3.1. The Exchange shall implement and maintain a robust investor onboarding process that ensures compliance with all Applicable Regulations, including:

- identity verification in accordance with EU Directive (EU) 2015/849 (AMLD) and applicable national legislation, including collection and verification of government-issued identification, proof of address, and beneficial ownership declarations for legal entities;
- sanctions screening against all applicable lists (EU, UN, OFAC, and relevant national lists), at onboarding and on an ongoing basis;
- Politically Exposed Person (PEP) screening and, where applicable, enhanced due diligence;
- suitability and appropriateness assessments as required under MiCAR and WpHG, ensuring that the Certificates are distributed only to Eligible Investors;
- source of funds and source of wealth verification where required by Applicable Regulations or risk-based assessment.

3.2. The Exchange shall not permit any person who has not successfully completed the onboarding process to subscribe to, purchase, or receive Certificates through the Trading Platform.

3.3. The Exchange shall maintain records of all onboarding documentation for the period required by Applicable Regulations (and in any event for no less than five (5) years following termination of the investor's relationship with the Exchange), and shall make such records available to Finest and to competent supervisory authorities upon request.

3.4. The Exchange shall promptly notify Finest of any investor who fails the onboarding process, any suspicious activity detected during the onboarding or ongoing transaction monitoring process, and any filing of suspicious activity reports with the relevant financial intelligence unit, to the extent permitted by law.

4. ORDER EXECUTION, SETTLEMENT, AND PRICING

4.1. The Exchange shall execute all On-Ramp, Off-Ramp, and secondary trading transactions promptly, fairly, and in accordance with its best execution policy and Applicable Regulations. The Exchange shall maintain transparent order execution processes, including clear rules on order priority, matching, and partial fills, and shall make its execution policy available to Finest and to investors upon request.

4.2. The Exchange shall not engage in proprietary trading against investor orders in respect of the Certificates and shall manage any conflicts of interest arising from its market-making or liquidity provision activities in a fair and transparent manner.

4.3. All On-Ramp and Off-Ramp conversion rates shall be based on prevailing market rates at the time of execution, sourced from reputable and verifiable market data providers. The Exchange shall disclose to the investor, prior to execution, the applicable conversion rate, any spread applied, and the total fees payable. The Exchange shall not apply hidden fees, markups, or spreads that are not transparently disclosed.

4.4. Settlement of On-Ramp transactions (fiat to crypto) shall be completed within two (2) Business Days of receipt of the investor's cleared funds. Settlement of Off-Ramp transactions (crypto to fiat) shall be completed within two (2) Business Days of receipt of the crypto-assets from the investor's Wallet. Settlement of redemptions shall be processed in accordance with the Product Conditions (T+15 Business Days from the Valuation Date).

4.5. The Exchange shall maintain a complete and accurate record of all transactions, including timestamps, amounts, conversion rates, fees, and counterparty details, and shall make such records available to Finest and to competent supervisory authorities upon request.

5. REGULATORY COMPLIANCE AND ANTI-MONEY LAUNDERING

5.1. The Exchange shall at all times comply with all Applicable Regulations in the provision of the Services, including MiCAR, the KWG, the WpHG, the eWpG, EU AMLD, the EU Travel Rule (Regulation (EU) 2023/1113 on information accompanying transfers of funds and certain crypto-assets), FinSA (to the extent the Certificates are offered in Switzerland), and all applicable sanctions legislation.

5.2. The Exchange shall maintain a comprehensive anti-money laundering and counter-terrorism financing (AML/CTF) programme, which shall include: a risk-based approach to customer due diligence; ongoing transaction monitoring and surveillance; automated and manual screening against sanctions, PEP, and adverse media lists; a designated Money Laundering Reporting Officer (MLRO); regular AML/CTF training for all relevant personnel; and an independent audit of the AML/CTF programme at least annually.

5.3. The Exchange shall implement Know Your Transaction (KYT) monitoring for all blockchain-based transactions involving the Certificates, including tracing the origin and destination of crypto-assets and flagging transactions associated with high-risk wallets, mixers, or sanctioned addresses.

5.4. The Exchange shall maintain its regulatory licence(s) and authorisation(s) in good standing throughout the term of this Agreement and shall promptly (and in any event within five (5) Business Days) notify Finest in writing of: any change in its regulatory status, including suspension, limitation, or revocation of its licence; any investigation, enforcement action, or formal inquiry by a supervisory authority; and any material change in its ownership, management, or control structure.

6. OPERATIONAL AND TECHNICAL REQUIREMENTS

6.1. The Exchange shall maintain a reliable, secure, and scalable Trading Platform with an uptime commitment of not less than 99.5% on a monthly basis (excluding scheduled maintenance windows communicated to Finest at least forty-eight (48) hours in advance). The Exchange shall maintain a comprehensive business continuity and disaster recovery plan, tested at least annually.

6.2. The Exchange shall implement and maintain cybersecurity measures aligned with industry best practices and Applicable Regulations, including: encryption of data in transit and at rest; multi-factor authentication for all administrative and investor access; intrusion detection and prevention systems; regular penetration testing and vulnerability assessments (at least annually); and incident response procedures with defined escalation protocols.

6.3. The Exchange shall ensure full technical compatibility with the Cardano blockchain for the processing of CIP-113 token transactions, including the ability to: receive, hold, and transfer CIP-113 tokens within the Trading Platform; interact with the crypto securities register maintained by the Registrar; cooperate with Finest and the Registrar on wallet whitelisting; and support any smart contract functionality required for the Certificates.

6.4. The Exchange shall provide Finest with comprehensive API documentation and technical specifications to enable integration with Finest's and/or the Issuer's systems. The Exchange shall maintain backward compatibility of its APIs and shall notify Finest at least thirty (30) days prior to any material change. The Exchange shall cooperate in testing integrations prior to launch.

7. DATA PROTECTION AND PRIVACY

7.1. Each Party shall comply with all applicable data protection laws, including the GDPR, in the processing of Personal Data in connection with this Agreement.

7.2. To the extent the Exchange processes Personal Data on behalf of Finest, the Parties shall enter into a data processing agreement in accordance with Article 28 GDPR.

7.3. The Exchange shall implement appropriate technical and organisational measures to ensure the security and confidentiality of Personal Data, including protection against unauthorised access, alteration, disclosure, or destruction.

7.4. The Exchange shall promptly notify Finest (and in any event within seventy-two (72) hours) of any Personal Data breach affecting data processed in connection with this Agreement, and shall cooperate in the management and notification of such breach.

7.5. The Exchange shall not transfer Personal Data to any country outside the European Economic Area without the prior written consent of Finest, unless adequate safeguards are in place in accordance with the GDPR (such as Standard Contractual Clauses or an adequacy decision).

8. MARKETING AND DISTRIBUTION MATERIALS

8.1. All marketing materials and communications relating to the Certificates ("Marketing Materials") shall be prepared under the responsibility of Finest and must be fair, clear, and not misleading, in accordance with §§ 63–64 WpHG, Article 29 MiCAR, and any other applicable requirements.

8.2. The Exchange shall not create, publish, distribute, or otherwise disseminate any Marketing Materials for the Certificates without the prior written approval of Finest. This includes, without limitation, any advertising, social media posts, press releases, newsletters, or research that references the Certificates.

8.3. All Marketing Materials shall comply with the Swiss Federal Act on Financial Services (FinSA), the German Securities Trading Act (WpHG), and any other applicable laws and regulations of the jurisdictions in which the Certificates are offered. All Marketing Materials shall be clearly identified as marketing and reference the applicable Offering Documents.

8.4. The Exchange shall cooperate with Finest in the prompt withdrawal or correction of any Marketing Material that Finest determines to be inaccurate, incomplete, misleading, or non-compliant with Applicable Regulations.

8.5. The Exchange operates the Trading Platform in accordance with its Trading Platform Operating Rules (as published and updated from time to time in compliance with applicable EU regulations), which shall apply to all transactions executed on the Trading Platform in connection with the Certificates. Finest acknowledges having reviewed the current version of the Operating Rules and agrees that all orders submitted through the Trading Platform shall be subject thereto.

9. FEES AND EXPENSES

9.1. In consideration of the Services, Finest shall pay the Exchange fees as set out in Schedule 1 (Fee Schedule), which may include: transaction fees for On-Ramp and Off-Ramp conversions; listing or distribution fees; platform fees; and compliance fees.

9.2. All fees shall be exclusive of applicable value added tax (VAT) or other taxes, which shall be payable in addition where legally required. The Exchange shall issue invoices monthly in arrears, and payment shall be due within thirty (30) days of receipt of a valid invoice.

9.3. All fees charged to investors shall be transparent and disclosed prior to the execution of each transaction, in accordance with Applicable Regulations. The Parties shall review the fee structure on an annual basis and may adjust it by mutual written agreement.

10. LIABILITY, INDEMNITY, AND FORCE MAJEURE

Liability

10.1. The Exchange shall be liable for any direct loss, damage, or expense suffered by Finest or investors as a result of the Exchange's negligence, wilful misconduct, fraud, or material breach of this Agreement or of Applicable Regulations, including without limitation failures in AML/KYC compliance, cybersecurity breaches attributable to the Exchange, execution errors, incorrect conversions, settlement failures, and loss or unauthorised transfer of crypto-assets.

Limitation of Liability

10.2. Neither Party shall be liable to the other for any indirect, consequential, incidental, special, or punitive damages, including loss of profits, loss of business, or loss of data, even if advised of the possibility of such damages. The Exchange's aggregate liability under this Agreement shall not exceed the total fees paid or payable by Finest to the Exchange during the twelve (12) months immediately preceding the event giving rise to the claim, except in cases of fraud, wilful misconduct, or breach of data protection obligations, where liability shall be unlimited.

Indemnity

10.3. Each Party (the “Indemnifying Party”) shall indemnify, defend, and hold harmless the other Party and its directors, officers, employees, and agents from and against any and all losses, claims, damages, liabilities, costs, and expenses (including reasonable legal fees) arising from: a breach of any representation, warranty, or obligation under this Agreement; negligence, wilful misconduct, or fraud; or any third-party claim arising from a failure to comply with Applicable Regulations.

Force Majeure

10.4. Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement to the extent such failure or delay results from a Force Majeure Event. The affected Party shall promptly notify the other Party of the occurrence of a Force Majeure Event and shall use reasonable endeavours to mitigate its effects. If a Force Majeure Event continues for more than ninety (90) days, either Party may terminate this Agreement upon thirty (30) days’ written notice.

11. INSURANCE

11.1. The Exchange shall maintain at all times during the term of this Agreement, at its own expense, insurance coverage appropriate to the nature and scope of the Services, including: professional indemnity / errors and omissions insurance; cyber risk and data breach insurance; and crime / fidelity insurance covering employee dishonesty and external theft. Upon request, the Exchange shall provide Finest with evidence of such coverage. The Exchange shall promptly notify Finest of any material change, cancellation, or reduction of coverage.

12. REPRESENTATIONS AND WARRANTIES

12.1. The Exchange represents and warrants to Finest that, as of the date of this Agreement and throughout its term: it is duly incorporated and validly existing under the laws of its jurisdiction of incorporation; it holds all necessary licences and authorisations to operate as a regulated crypto-asset service provider and to provide the Services; it has the corporate power and authority to enter into and perform its obligations under this Agreement, and the execution and performance hereof have been duly authorised; this Agreement does not violate any law, regulation, order, or contractual obligation binding on the Exchange; it has the technical infrastructure, compliance frameworks, qualified personnel, and operational capacity to perform the Services to a professional standard; and there are no pending or threatened proceedings, investigations, or enforcement actions by any competent supervisory authority that would materially affect its ability to perform.

12.2. Finest represents and warrants to the Exchange that: it is duly incorporated and validly existing under the laws of Germany; it has the corporate power and authority to enter into this Agreement; the Certificates have been or will be duly structured and documented in accordance with all applicable laws, including the eWpG and the Securitisation Law; all Offering Documents have been or will be prepared in compliance with applicable regulatory requirements and are or will be fair, clear, and not misleading; and the total issuance volume does not and shall not exceed EUR 8,000,000 within any 12-month period under Article 3(2) of the Prospectus Regulation (EU) 2017/1129, unless otherwise agreed.

13. INTELLECTUAL PROPERTY

13.1. Each Party retains ownership of all intellectual property rights in its pre-existing materials, technology, trade marks, and know-how. Nothing in this Agreement shall operate to transfer ownership of any intellectual property from one Party to the other.

13.2. Finest grants to the Exchange a non-exclusive, non-transferable, royalty-free licence to use the Finest name, logo, and product descriptions solely for the purpose of performing the Services and making the Certificates available on the Trading Platform, subject to Finest's prior approval. Upon termination, the Exchange shall cease all use of Finest's intellectual property and remove all references from the Trading Platform within fifteen (15) Business Days.

14. CONFIDENTIALITY

14.1. Each Party shall keep all Confidential Information received from the other Party strictly confidential and shall not disclose it to any third party without prior written consent, except: to the extent required by law, regulation, court order, or order of a competent supervisory authority; to its employees, directors, officers, agents, professional advisers, and service providers who have a need to know and are bound by equivalent confidentiality obligations; or as permitted under clause 14.3 below.

14.2. Each Party shall use Confidential Information solely for the purposes of this Agreement and shall implement appropriate measures to protect it from unauthorised access, disclosure, or use.

14.3. Notwithstanding the foregoing, the Parties may disclose a redacted version of this Agreement to representatives of the Cardano community in the context of a financing grant provided to Finest and the Issuer. Confidential Information may also be disclosed to affiliates, holding companies, and subsidiaries of either Party. This obligation of confidentiality shall survive termination for a period of two (2) years.

15. NOTICES

15.1. All notices, requests, consents, and other communications under this Agreement shall be in writing and delivered by hand, internationally recognised courier, or email to the addresses below (or as updated in writing):

If to Finest: FI finest Investments GmbH, Luegallee 12, 40545 Duesseldorf, Germany. Email: [REDACTED]. Attention: Joint CEOs.

If to the Exchange: [REDACTED].

15.2. Notices shall be deemed received: on the date of delivery if delivered by hand; on the second Business Day after dispatch if sent by courier; and on the Business Day following transmission if sent by email (provided no delivery failure notification is received).

16. TERM AND TERMINATION

16.1. This Agreement shall commence on the date of execution and shall continue for an initial term of two (2) years (the “Initial Term”). Thereafter, the Agreement shall automatically renew for successive periods of one (1) year unless terminated in accordance with this clause 16.

16.2. Either Party may terminate this Agreement at the end of the Initial Term or any Renewal Term by providing at least ninety (90) days’ prior written notice.

16.3. Either Party may terminate this Agreement with immediate effect by written notice if: the other Party commits a material breach and fails to remedy it within thirty (30) days of written notice; the other Party becomes insolvent, enters into liquidation, or has a receiver appointed; the other Party’s regulatory licence is revoked, suspended, or materially restricted; or continued performance would cause the terminating Party to be in breach of Applicable Regulations.

16.4. Upon termination: the Exchange shall cease accepting new subscriptions for Certificates; cooperate in the orderly wind-down and migration of investor accounts; continue Off-Ramp services for at least sixty (60) days to enable settlement of outstanding transactions; return or destroy Confidential Information (subject to retention obligations); and remove all references to Finest and the Certificates from the Trading Platform within fifteen (15) Business Days. Termination shall not affect accrued rights.

16.5. The following clauses shall survive termination: clause 1 (Definitions), clause 7 (Data Protection), clause 10 (Liability), clause 14 (Confidentiality), clause 15 (Notices), clauses 16.4–5 (Consequences), clause 17 (Governing Law), and clause 18 (General Provisions).

17. GOVERNING LAW AND JURISDICTION

17.1. This Agreement shall be governed by and construed in accordance with the substantive laws of the Federal Republic of Germany, without regard to its conflict of law principles.

17.2. Any dispute, controversy, or claim arising out of or in relation to this Agreement, including the validity, invalidity, breach, or termination thereof, shall exclusively be resolved by the competent courts of Duesseldorf, Germany. Either Party may seek injunctive or other equitable relief in any competent court to prevent irreparable harm.

18. GENERAL PROVISIONS

18.1. This Agreement, together with its schedules and annexes, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, and agreements.

18.2. No amendment, modification, or waiver of any provision shall be effective unless in writing and signed by both Parties.

18.3. No failure or delay in exercising any right shall constitute a waiver thereof, nor shall any single or partial exercise preclude further exercise.

18.4. If any provision is found invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect. The Parties shall negotiate in good faith a replacement provision achieving the same economic and legal effect.

18.5. Neither Party may assign, transfer, or delegate its rights or obligations without the prior written consent of the other Party, except to an affiliate or in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee assumes all obligations hereunder.

18.6. Nothing in this Agreement shall be construed as creating a joint venture, partnership, agency, or employment relationship. Neither Party shall have the authority to bind the other without prior written consent.

18.7. This Agreement does not create any rights enforceable by any person who is not a Party hereto.

18.8. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original. Electronic signatures shall be deemed valid and binding.

* * *

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

For and on behalf of FI finest Investments GmbH:

Name: [REDACTED]

Title: Joint CEOs (Geschäftsführer)

Signature: [REDACTED]

For and on behalf of [REDACTED]:

Name: [REDACTED]

Title: [REDACTED]

Signature: [REDACTED]